

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 21-05

MCS INDUSTRIES, INC. v. COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY SA

JOINT STATUS REPORT AND PROPOSED DISCOVERY SCHEDULE

Pursuant to 46 C.F.R. § 502.141(h), Complainant MCS Industries, Inc. (“MCS”) and Respondent MSC Mediterranean Shipping Company SA (“MSC” and, collectively with MCS, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule:¹

The Parties have already exchanged the initial disclosures required by 46 C.F.R. § 502.141(b). The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions) and 502.145 (i.e., no more than 50 written interrogatories), respectively. Consistent with Paragraph 18 of Your Honor’s August 4, 2021 Initial Order in this case, the Parties intend to meet and confer concerning a stipulation regarding treatment of confidential documents and information exchanged and used in this case.

¹ On September 10, 2021, MCS filed, with the support of Respondent COSCO SHIPPING Lines Co., Ltd. (“CSL”), a motion for approval of a settlement of MCS’s claims against CSL in this action, which currently is pending before Your Honor. Consequently, CSL did not participate in the aforementioned conference.

The parties propose the following schedule:

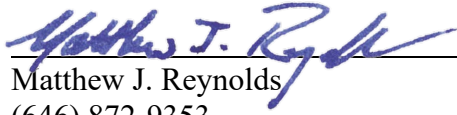
Event	Deadline
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”)	September 24, 2021
Submission of disputes concerning scope of initial RFPs (after counsel confer directly)	October 8, 2021
Target for substantial completion of productions of documents and ESI in response to initial RFPs	November 5, 2021
Target for exchange of privilege logs	November 12, 2021
Complete depositions of fact witnesses	December 13, 2021
Disclosure of initial expert reports	December 20, 2021
Last day to serve interrogatories, requests for admission, and final RFPs	December 28, 2021
Disclosure of rebuttal expert reports	January 7, 2022
Complete expert depositions	January 21, 2022
Close of discovery	January 27, 2022
Motions for summary decision due	March 10, 2022 ²

Pursuant to 46 C.F.R. § 502.64(a), the Parties have conferred with the Director of the Commission’s Office of Consumer Affairs and Dispute Resolution Services, and are not scheduling a mediation at this time.

² Complainants’ counsel currently have a two-week trial scheduled to commence on February 14, 2022 in the U.S. District Court for the Southern District of Florida, and therefore seek to avoid having to brief motions for summary decision in this case while at trial.

Dated: September 20, 2021

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Respectfully submitted,

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